

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)



PRESENT:

Mrs. Justice Ayesha A. Malik
Mr. Justice Muhammad Hashim Khan Kakar
Mr. Justice Ishtiaq Ibrahim

CPLA NO.5401 OF 2024

(Against order dated 16.02.2024 passed by the Punjab Service Tribunal in Appeal No.1414 of 2023)

Fakhar Majeed	Versus	... Petitioner
Secretary Government of Punjab Irrigation Department, Lahore and others		... Respondents

For the Petitioner	:	Mr. Muhammad Shafiq-ur-Rehman Dub, ASC along with Syed Rifaqat Hussain Shah, AOR
For the Respondents	:	Mr. Khalid Masood Ghani, Assistant Advocate General, Punjab
Date of Hearing	:	15.01.2026

JUDGMENT

AYESHA, A. MALIK, J.- This Civil Petition is directed against order dated 16.02.2024 passed by the Punjab Service Tribunal (**Tribunal**) whereby the appeal filed by the Petitioner was dismissed.

2. The basic contention of the Petitioner is that he is entitled to proforma promotion with effect from 18.01.2010 being the date when the vacancy was available for the post of draftsman (BPS-14). The Respondents, on the other hand, agree with the impugned order and state that in terms of Section 8 of the Punjab Civil Servants Act, 1974 (**Act**), the Petitioner does not have any right to seek proforma promotion from the date of vacancy rather promotion is to be granted with immediate effect.

3. Basic facts of this case are that the Petitioner was appointed with the Respondent department on 30.10.1999. As per the record, the Petitioner was promoted to the post of draftsman on current charge basis three times in BPS-10 vide letters dated 11.12.2008, 02.06.2010 and 12.11.2011 for a period not exceeding one year under Rule 10(b) of the Punjab Civil Servants (Appointment & Condition of Services), Rules, 1974 (**Rules**) or till the arrival of regular incumbent

whichever is earlier. Thereafter, he was acting as draftsman in BPS-11 on current charge basis with effect from 05.06.2012 for a period not exceeding one year under Rule *ibid* vide order dated 13.10.2012. A Departmental Promotion Committee (**DPC**) was convened in the year 2012 wherein the case of the Petitioner was not considered. This became the subject matter of a dispute between the parties. The Petitioner was ultimately recommended for promotion to the post of draftsman by the DPC held on 04.05.2019 and thereafter promoted vide office order dated 07.05.2019. The Petitioner is aggrieved as he feels that he was not treated fairly as per law and was denied the lawful right of being considered for promotion in 2012. The issue, therefore, is the Petitioner’s request for regular promotion to the post of draftsman (BPS-14) with effect from 18.01.2010.

4. Counsel for the Petitioner argued that he has been deprived of his promotion from 2010 as senior draftsman when vacancies were available. He has relied on the cases of *Muhammad Siddique*¹ and *Asad Hussain*.² He has argued that unjustified delay in promotion not only disrupt the efficient functioning of the institution but also weaken its service delivery capacity. The Assistant Advocate General, Punjab (**AAG**), on the other hand, has relied on Section 8(3) of the Act, which is reproduced below:

“[8.**Promotion**

(1).....

(2).....

(3) Promotion shall be granted with immediate effect and be actualized from the date of assumption of charge of the higher post, and shall in no case be granted from the date of availability of post reserved for promotion.”

He has essentially argued that there is no right to promotion and that promotion is to be granted with immediate effect and not from the date when a vacancy is available. Learned AAG states that judgments relied upon by the Petitioner are not relevant because they cannot be applied as these judgments have not taken into consideration Section 8 of the Act as was amended in 2005, according to which, promotion must be granted with immediate effect and not from the date of vacancy.

5. We have heard the counsel for the Petitioner and the AAG and have gone through the record. The facts and circumstances in this case are unique, in that, the Petitioner has been admittedly holding

¹ Muhammad Siddique v. Director Special Education (1998 SCMR 88).

² Asad Hussain v. Controller General of Accounts (2025 SCMR 1515).

the post of draftsman on current charge basis from 2008 onwards and by his own statement he became mature for promotion to the post of draftsman in 2010 at which point he states that he was entitled to be promoted. The record shows that a DPC was carried out on 21.01.2012 in which, as per instructions received by the AAG, the case of the Petitioner was not considered. We asked the AAG as to why the case of the Petitioner was not considered given that the same was ripe for promotion and that he was holding the post on current charge basis; however, he very candidly stated that there is no reason given or available on record. Furthermore, as per the record, there is no legal basis given in the minutes of meeting of the DPC. After a prolonged delay on 04.05.2019, another DPC was convened when his case was considered and he was promoted. The issue now is as to whether he is entitled to be considered for promotion from the date of vacancy on 17.04.2010 or the date of DPC 21.01.2012 or with immediate effect on 04.05.2019.

6. Section 8(3) of the Act provides that promotion has to be given with immediate effect and not from the date of vacancy. The facts of this case do not fall within the ambit of Section 8(3) of the Act because in this case, there is no vacancy given that the Petitioner was admittedly holding the post of draftsman on current charge basis from 2008. This means that the Petitioner has been working at the post since 2008 and yet could not be promoted to the post until 2019. The question is that since he was holding the post on a current charge basis, should his case have been considered for promotion in 2012 as the orders of current charge basis clearly show that these were for a period not exceeding one year under Rule 10(b) of the Rules or till the arrival of regular incumbent whichever is earlier, meaning that if he was promoted to the post, the need to keep extending his current charge under the Rules would end. Since there is no explanation whatsoever, we find that the Petitioner's case was ignored in 2012 for no justifiable reason as the Respondents were obligated to consider the Petitioner in 2012 for promotion to draftsman (BPS-14).

7. Promotion is a natural progression in the service of a civil servant. It is an integral incident of service and every civil servant who fulfils the prescribed criteria of fitness, eligibility and seniority has a legitimate expectation to be considered for promotion within a reasonable time. When its grant is delayed due to inefficiency, poor

administration or inaction, it adversely impacts the civil servants' right to be considered and a failure to meet this expectation, without lawful justification, constitutes arbitrariness and procedural unfairness. Where promotion is lost solely on account of administrative oversight such as a delay in convening the DPC, despite eligibility, fairness requires that the omission be remedied. Unjustified delay in promotion matters causes serious hardship to civil servants, particularly those nearing or after retirement, and leads to avoidable and repetitive litigation. Sanctioned posts exist to meet defined functional needs and must be filled promptly so long as they remain operative and are not lawfully frozen or abolished. Public institutions and government functionaries are under a duty to ensure that promotion processes are conducted timely, rationally and in accordance with law, rather than allowing delay or inaction to defeat legitimate service rights and compel recourse to courts for relief that ought to have been granted in the ordinary course.³ In this case, the Petitioner was holding current charge of the post from 2008 until 2019 when he was actually promoted to the post which also speaks volumes with regard to the delay and the negligence on part of the Respondents, who allowed him to work on current charge basis but did not consider him for promotion to the post in 2012 when a DPC was held. The delay, therefore, cannot be attributed to the Petitioner. It is totally the result of negligence and inefficiency of the department and in terms of the law laid down by this Court that a civil servant does not bear the consequences of internal administrative lapses.⁴ Unexplained delay in decision-making that affects career progression is in itself a form of injustice. It denies an eligible civil servant timely consideration for promotion, undermines merit-based progression, and places the individual in a prolonged state of uncertainty. Such delay impairs equality of opportunity within the service and cannot be treated as a mere administrative lapse. The delay on the part of the Respondents for promotion purposes amounts to a denial of fair and equal treatment in accordance with law and violates Articles 4 and 25 of the Constitution.⁵ The State cannot therefore rely on the law to defend its own inaction or inefficiency to deny fair consideration for advancement once the prescribed eligibility criteria are met.

³ Federation of Pakistan v. Jahanzeb (2022 SCMR 2020).

⁴ Bashir Ahmed Badini v. Hon'ble Chairman and Member of Administration Committee (2022 SCMR 448).

⁵ The Constitution of the Islamic Republic of Pakistan, 1973 (**Constitution**).

8. It must also be noted that where the Government acts as an employer, it is held to a higher standard of fairness, reasonableness and accountability. The State is required to act as a model employer, particularly in matters affecting promotion and service entitlements and rights, and cannot justify inaction or delay on the basis of internal inefficiencies. According to the World Justice Project Rule of Law Index 2025, Pakistan ranks 130th out of 143 countries in overall rule-of-law performance, and in the Civil Justice factor, which measures the accessibility of civil justice, the effectiveness of its delivery and the absence of unreasonable delay, we rank 129th out of 143 countries. Similarly, the Worldwide Governance Indicators (**WGI**) developed by the World Bank treat government effectiveness as a core measure of good governance, focusing on the quality of public administration, the competence of the civil service, and the capacity of institutions to implement decisions in a timely and predictable manner, in respect of which Pakistan's percentile rank stands at 31 out of 100. In this context, global standards of public administration indicate how civil service systems are expected to function in accordance with principles of good governance. The Organization for Economic Co-operation and Development (**OECD**) Principles of Public Administration⁶ emphasize a merit-based civil service and require that career management processes, including promotion, operate through clear, predictable and timely procedures. The United Nations Department of Economic and Social Affairs Principles of Effective Governance emphasize effectiveness, accountability and transparency in the administration of public employment. Additionally, Sustainable Development Goal 16 (**SDG-16**) underscores the importance of effective, accountable and transparent public institutions, and emphasizes that good governance is assessed by the capacity of State institutions to perform their functions in an effective and reliable manner. Measured against these standards, the failure of the Respondents to allow the Petitioner to continue on current charge for several years, reflects administrative inaction and institutional inefficiency. Such failure cannot be allowed to operate to the prejudice of a civil servant who was otherwise eligible. In reiterating international standards and commitments, the purpose is to remind the State of the obligations it has undertaken and the need for institutional

⁶ Although Pakistan is not an OECD member, OECD frameworks are often referred to by non-member States as persuasive international benchmarks in specific policy and regulatory contexts, without creating binding legal obligations.

compliance with principles of effective, fair and accountable public administration that are followed globally. Such obligations reinforce the requirement that promotion processes be conducted in a timely and transparent manner, and that eligible civil servants are not prejudiced by administrative neglect.

9. So far as the contention of the AAG that promotion is not a right we find that the Petitioner had the right to be considered for promotion with effect from the date of the DPC in 2012 and further that the Respondents cannot take shelter of their inefficiencies and inactions by relying on Section 8(3) of the Act as they are responsible for ensuring timely promotions such that the right to be considered in a timely manner is protected. It must be remembered that promotion in public service is not a gratuitous benefit, it is tied to merit, performance and operational needs of the State. Once an employee satisfies the prescribed eligibility criteria, a corresponding duty devolves on the competent authority to consider the case failing which a reasonable timeframe where they are difficulties the same must be documented and explained to ensure systematic failures and transparency. By relying on Section 8(3) of the Act, the Respondents have actually tried to nullify the delay, mismanagement and inefficiency of the department of the Petitioner. Fairness, transparency and timeliness in promotion matters are critical to keep employees efficient and motivated. The learned AAG has placed reliance on a number of judgments of this Court. A careful examination of the authorities cited, however, shows that this reliance is either misplaced or wholly misconceived. It is worth pointing out that the cases of *Asad Hussain* and *Ghulam Shabbir*⁷ do not support the Respondents' position, rather, they hold that where an employee is admittedly eligible, vacancies in the promotion quota exist, and the employee is made to discharge the functions of the higher post, the competent authority is under a legal duty to convene the promotion process within a reasonable time. These cases hold that departmental delay, failure to convene the DPC, or prolonged reliance on current charge or acting arrangements cannot be used to defeat the right of an eligible civil servant to timely consideration for promotion, and that a civil servant cannot be made to suffer for omissions, inefficiency or inaction

⁷ Province of Sindh v. Ghulam Shabbir (2023 SCMR 686).

attributable to the department.⁸ Therefore, these cases actually support the Petitioner’s stance. The remaining authorities relied upon by the Respondents are clearly distinguishable as they deal with issues such as *inter se* seniority disputes, quota rotation, pay of higher posts, surplus employees, or illegality in grant of retrospective promotion, and do not address denial of timely consideration for promotion despite eligibility. Hence, none of the judgments cited lay down that departmental delay can be rendered inconsequential by invoking Section 8(3) of the Act or that the consequences of administrative inaction may lawfully be shifted onto the civil servant.⁹

10. Under the circumstances, we find that the Tribunal failed to appreciate the fact that the Petitioner was unjustifiably deprived of the promotion to the post of draftsman (BPS-14) from the date of convening of first DPC that is 21.01.2012. Consequently, the impugned order is set aside and the Civil Petition is converted into an appeal and is allowed such that the Petitioner shall be deemed as promoted w.e.f 21.01.2012.

JUDGE

JUDGE

JUDGE

Islamabad
15.01.2026
‘APPROVED FOR REPORTING’
Azmat/Nurayn Qasim-

⁸ Other cases relied upon by the AAG included; Government of Khyber Pakhtunkhwa v. Fazli Ghufraan (2022 SCMR 1765), Khalid Mehmood v. Chief Secretary, Government of Punjab (2013 SCMR 544), Water & Power Development Authority v. Abdul Aziz (2012 SCMR 965), Muhammad Amjad v. Israr Ahmed (2010 SCMR 1466) and Luqman Zareen v. Secretary Education (2006 SCMR 1938).
⁹ These cases include; Yasmeen Jaffar v. Shehla Sami (2019 SCMR 993), Abu Saeed v. Government of N.-W.F.P. (1990 SCMR 1623), Government of N.-W.F.P. v. Buner Khan (1985 SCMR 1158), Islamic Republic of Pakistan v. Abdul Kareem, Deputy Accountant-General, N.-W.F.P. (1978 SCMR 289) and Farkhanda Talat v. Federation of Pakistan (2007 SCMR 886).